

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 22-012

**Amendments to Title 16, Chapter 2 of the Chickasaw Nation Code
(Rules on Legislation)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Tribal Legislature has enacted rules regarding proposed legislation, and

WHEREAS, the Tribal Legislature desires to amend those rules to ensure the timely and uniform treatment of all proposed legislation.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 16, Chapter 2 of the Chickasaw Nation Code, all other sections of Title 16, Chapter 2 to remain the same (additions and case changes are shown in red, deletions are stricken through):

"SECTION 16-204

COMMITTEES AND RULES.

B. Standing Committees' Structure and Purpose.

2. ~~The Chairperson shall assign proposed Legislation to a Standing Committee for further review. It shall be kept in said Committee no longer than the third Regular Session of the Legislature following its assignment to said Committee, when it shall be presented on the agenda.~~

3. ~~No Legislation assigned to a Standing Committee shall be allowed to die in Committee.~~

Each Standing Committee, through its Chairman, shall report its recommendations on proposed Legislation to the Legislature.

5. ~~Legislation, not assigned to a Standing Committee, may be presented in a Legislative Session by an individual Member of the Legislature for the purpose of its consideration, assignment, or other action.~~

36. Each Standing Committee, except those Committees separately provided for, shall be composed of not more than six (6) members of the Legislature, in addition to the Chairperson. No Legislator shall serve on more than four (4) Standing Committees, except when a Committee waives such provision.

47. It shall be the responsibility of the Chairman of a Committee to conduct the meeting and to provide for the recording and transcription of the Minutes.

58. The following are Standing Committees of the Tribal Legislature, the provinces of some which may, from time to time, best be addressed within the structure of a Joint Committee, Special/Select Committee, *Ad Hoc* Committee, or the Committee of the Whole, as determined by the Chairperson:

SECTION 16-205

RULES ON LEGISLATION.

B. Proposed Legislation:

3. The Chairperson shall assign proposed Legislation to a Committee for consideration. The Committee shall decide whether or not to place the Legislation on a Regular or Special Session agenda prior to the third Regular Session of the Legislature following its assignment to said Committee.

a. The person listed as the "Requester" of a piece of Legislation may withdraw it at any time prior to the taking of a vote for adoption in a Regular or Special Session.

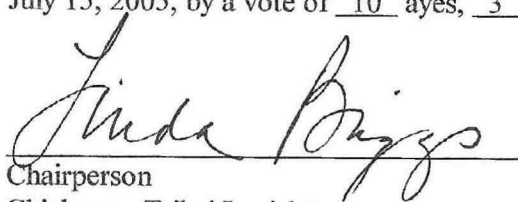
b. The Committee may vote to deny a piece of Legislation, or a motion to place the Legislation on the agenda may die for lack of a second, in which case this Section shall be satisfied.

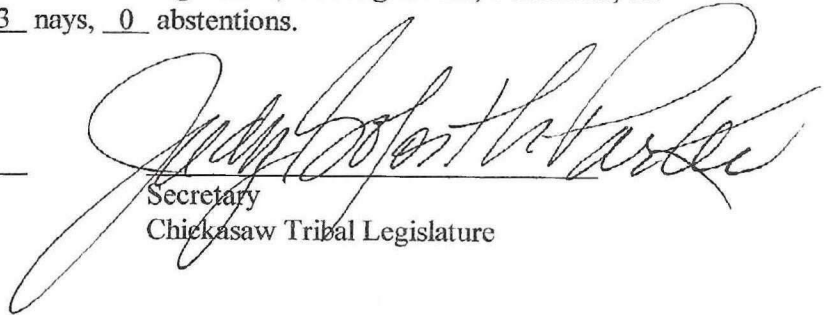
c. The Committee may, by majority vote, table a piece of Legislation for longer than the third Regular Session defined above, provided the Legislation is being examined for feasibility or wording.

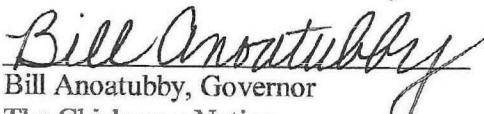
d. No Legislation shall be allowed to die in Committee without a vote being taken by the Committee subject to Subparagraph b above.

e. Resolutions approving the annual Consolidated Governmental Budget shall be placed on a Regular or Special Session agenda no later than the Regular Session of September of each year.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on July 15, 2005, by a vote of 10 ayes, 3 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUL 19 2005

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Explanation: This resolution amends those sections of Title 16, Chapter 2 that describe the process for consideration of proposed legislation by the Tribal Legislature.

Requested By: Linda Briggs, Chairperson

Presented By: Holly Easterling, Chairman
Ethics Ad Hoc Committee